

Vernon's Texas Statutes and Codes Annotated

Occupations Code (Refs & Annos)

Title 12. Practices and Trades Related to Water, Health, and Safety (Refs & Annos)

Subtitle B. Practices Related to Health and Safety

Chapter 1958. Mold Assessors and Remediators (Refs & Annos)

Subchapter A. General Provisions

V.T.C.A., Occupations Code § 1958.001

§ 1958.001. Definitions

Currentness

In this chapter:

(1) “Advisory board” means the Mold Assessment and Remediation Advisory Board.

(1-a) “Commission” means the Texas Commission of Licensing and Regulation.

(1-b) “Department” means the Texas Department of Licensing and Regulation.

(2) “Executive director” means the executive director of the department.

(3) “License” means a license issued under this chapter.

(4) "Mold" means any living or dead fungi or related products or parts, including spores and hyphae.

(5) “Mold assessment” means:

(A) an inspection, investigation, or survey of a dwelling or other structure to provide the owner or occupant with information regarding the presence, identification, or evaluation of mold;

(B) the development of a mold management plan or remediation protocol; or

(C) the collection or analysis of a mold sample.

(6) “Mold remediation” means the removal, cleaning, sanitizing, demolition, or other treatment, including preventive activities, of mold or mold-contaminated matter that was not purposely grown at that location.

Credits

Added by [Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003](#). Amended by [Acts 2015, 84th Leg., ch. 1 \(S.B. 219\), § 5.292, eff. April 2, 2015](#); [Acts 2015, 84th Leg., ch. 838 \(S.B. 202\), § 1.278, eff. Sept. 1, 2017](#); [Acts 2023, 88th Leg., ch. 282 \(S.B. 1213\), § 1, eff. May 29, 2023](#); [Acts 2025, 89th Leg., ch. 204 \(H.B. 1620\), § 22.001\(33\), eff. Sept. 1, 2025](#); [Acts 2025, 89th Leg., ch. 493 \(S.B. 1255\), § 1, eff. Sept. 1, 2025](#).

V. T. C. A., Occupations Code § 1958.001, TX OCC § 1958.001

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.